

2014 SCC OnLine All 9211

(BEFORE SUDHIR AGARWAL, J.)

Ramveer Singh Petitioner

v.

U.P. Power Corporation Ltd. Thru Executive Engg.
and Another Respondents

Counsel for Petitioner:- S.S. Shukla

Counsel for Respondent:- Pankaj Kumar Shukla

Writ - C No. - 13988 of 2009

Decided on July 2, 2014

Hon'ble Sudhir Agarwal, J.

1. Heard Sri. S.S. Shukla, learned counsel for the petitioner and perused the record.

2. Notice on behalf of respondents has been accepted by Sri. Pankaj Kumar Shukla, Advocate and his name has also been shown in the cause list but he has not appeared though the case has been called in revised. In the circumstances, I proceed to decide the matter after hearing counsel for petitioner and perusing record.

3. On the allegation of theft of electricity by petitioner from power supply line of the Corporation the assessment was made by Executive Engineer under Section 126(1) of Electricity Act, 2003 vide order dated 15.04.2006 demanding Rs. 1,81,572/-, and, thereagainst petitioner preferred appeal, which has also been rejected by Appellate Authority vide order dated 07.01.2009 by a wholly unreasoned order.

4. Before this Court learned counsel for the petitioner submitted that under Electricity Supply Code, 2005 (hereinafter referred to as the "Code, 2005"), vide Annexure 6.3, the assessment ought to have been made at one and half times the rate per unit of the tariff applicable to the consumer category while in the present case assessment has been made on thrice of the rate per unit applicable to consumer category, which is illegal.

5. Clause 2 of Annexure 6.3 of Code, 2005 reads as under:

"2. The consumption so assessed shall be charged at one and half times the rate per unit of the tariff applicable to the consumer category after adjusting the amount paid by the consumer/person for the energy

consumption assessed for the assessment period if any. The amount billed at this rate one and half times rate shall not be taken into consideration for the purpose of computing consumer's liability to pay monthly/annually minimum charges, wherever applicable.”

6. I find substance in the matter. A bare perusal of the aforesaid provision shows that tariff applicable ought to have been assessed at one and half times instead of thrice but the same has not been done by respondents making assessment erroneous to this extent.

7. The writ petition is accordingly allowed in part. The impugned appellate order 07.01.2009 as well as assessment order dated 15.04.2006 are hereby set aside and the matter is remanded to Assessing Authority to reconsider the matter of assessment and pass a fresh order in accordance with law and in the light of observations made above.

8. No costs.

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